

STATE OF NEW YORK

7739--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 8, 2025

Introduced by M. of A. BERGER -- read once and referred to the Committee on Higher Education -- recommitted to the Committee on Higher Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to enacting the "military experience recognized for institutional transfer (MERIT) act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "military
2 experience recognized for institutional transfer (MERIT) act".

3 § 2. The education law is amended by adding a new section 6355 to read
4 as follows:

5 § 6355. Military experience recognized for institutional transfer
6 (MERIT) act. 1. For the purposes of this section, "veteran" shall have
7 the same meaning as such term is defined in subdivision three of section
8 one of the veterans' services law.

9 2. (a) Every veteran who is enrolled on a full-time basis as an under-
10 graduate student in good standing at an institution within the city
11 university of New York and state university of New York system shall,
12 upon application, be granted academic credit for military learning,
13 training, coursework, and occupational experience. Such credit shall not
14 be limited to elective credit. Each institution shall develop and main-
15 tain a clear, standardized framework for evaluating and applying mili-
16 tary learning toward degree requirements, including but not limited to
17 major requirements, general education or core curriculum requirements,
18 prerequisite coursework, and required experiential or applied learning
19 components, provided that the evaluated military learning is determined
20 to meet the academic standards and learning outcomes of the correspond-
21 ing course or requirement. In developing such framework, each institu-
22 tion shall utilize nationally recognized evaluation standards for mili-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03096-06-6

1 tary learning, including but not limited to methodologies established by
2 the American Council on Education (ACE) Military Guide, the Council for
3 Adult and Experiential Learning (CAEL), or any successor entities
4 performing equivalent evaluation functions.

5 (b) Such framework shall include, but not be limited to:

6 (i) a transparent and publicly posted process for veterans to submit
7 joint services transcripts, training records, and relevant service
8 documentation;

9 (ii) faculty review procedures for assessing alignment of military
10 learning with existing course outcomes;

11 (iii) written determinations, including specific justification when
12 military learning is not accepted toward a degree requirement;

13 (iv) an annual report to the board of trustees of the state university
14 of New York or the city university of New York summarizing determi-
15 nations and credit awarded;

16 (v) procedures for aligning military learning with learning outcomes
17 using nationally recognized frameworks, including ACE credit recommenda-
18 tions and CAEL standards for evaluating competency, content mastery, and
19 contact-hour equivalency; and

20 (vi) a requirement that faculty evaluators receive guidance or train-
21 ing on the application of the standards established pursuant to this
22 section to ensure consistent, transparent, and academically rigorous
23 determinations across departments.

24 3. No fee, tuition or other charge shall be assessed against a veteran
25 who qualifies for such credit pursuant to this section.

26 4. The board of trustees of the state university of New York and the
27 city university of New York shall adopt such procedures as are necessary
28 to fully implement the provisions of this section.

29 § 3. This act shall take effect on the first of July next succeeding
30 the date on which it shall have become a law.